

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN VIETNAM

Complete Community Opposition How-To

A practical guide for communities facing destructive development projects in Vietnam, grounded in the Law on Environmental Protection 2020, the EIA and environmental-licence system, community consultation, the complaint and lawsuit routes, and documented community experience

This guide uses the Vietnamese legal terms you will actually encounter (the ĐTM / EIA and the environmental licence, MONRE and the People's Committees, consultation via the commune authority and the Fatherland Front, the complaint (khiếu nại), denunciation (tố cáo), and administrative lawsuit, and so on), each explained in plain language where it first comes up. Vietnam's laws and, especially, its civic conditions change; the core mechanics below apply, but always check the current position.

A note on terms. Important terms are shown in **bold** the first time they appear, with a plain-language explanation right where they come up. Vietnamese terms are given with a short English gloss.

A note on money. Budgets in this guide are in Vietnamese đồng (VND). Every figure is indicative — community efforts in Vietnam are typically very low-cost (volunteer-run, using free complaint procedures and public data); larger sums apply only where independent studies or lawyers are engaged. Treat the ranges as a menu, not a bill.

A note on risk — read this first. Vietnam is a one-party state with tightly restricted civic space. The government has **imprisoned prominent environmental advocates**, often on charges unrelated to their advocacy, and independent organising is closely watched. This guide is written to be realistic about that: it emphasises the **lawful, within-system** levers that carry the least risk, urges you to work through permitted channels and to avoid anything that could be treated as political, and repeatedly flags safety. Please read Section 13 carefully before acting, and get advice from a lawyer where you can.

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INTRODUCTION & FRAMEWORK

Why This Matters

Community action can change project outcomes in Vietnam — but the levers are specific, and they work best when used lawfully and within the system, so knowing which ones work is half the battle. Vietnamese law requires many projects to pass an **environmental impact assessment (đánh giá tác động môi trường, ĐTM — the EIA)** and obtain an

environmental licence before they can operate, and — importantly — the **Law on Environmental Protection 2020** requires the project owner to **consult the affected community** and requires the approved EIA and the licence to be **publicly disclosed**. The law also gives citizens the right to **complain (khieu nai)** about an administrative decision, to **denounce (tố cáo)** wrongdoing, and, ultimately, to bring an **administrative lawsuit** in the People's Court.

That is a real, if narrow, toolkit. The honest counterweight — and it is a heavy one — is that Vietnam is a one-party socialist state that prioritises investment and state-directed development, where independent civil society operates in a **tightly restricted, closely monitored space**, consultation is often a formality run by the project owner, the courts are not independent of the Party-state, and — most seriously — the government has **imprisoned prominent environmental advocates**. Opposition here is therefore very different from opposition in an open democracy: the safest and most effective work is **technical, procedural, and lawful** — insisting the EIA and consultation follow the law, using the disclosed documents, raising specific legal defects through the complaint system, and working through permitted local channels — rather than protest or independent campaigning that can be treated as political. Communities across Vietnam have, within these limits, slowed, improved, and sometimes stopped harmful projects — factories, power plants, mines, land reclamations, and developments threatening water, farmland, coasts, and health.

What "winning" realistically means. Rarely a public government reversal of a promoted project. More often: an EIA sent back for defects; consultation done properly where it was skipped; the project's conditions and mitigation tightened; a licence delayed; a local People's Committee persuaded to withhold or revise approval; compensation improved; or the project quietly redesigned or relocated after well-documented, lawful pressure. Each has happened. The realistic goal is to make the project comply with its own legal requirements, to raise its cost and delay, and to use the consultation, EIA, disclosure, complaint, and (cautiously) court levers that Vietnam's system provides — while keeping your people safe above all.

The Strategic Framework

Five steps that reinforce each other:

1. **Target identification** — pin down what is proposed, which group (I-IV) it falls in, which assessment and licence apply, who approves it, and the deadlines.
2. **Documentation** — build an evidence record strong enough for the consultation, a complaint, and, if it comes to it, a lawsuit.
3. **Local support** — build lawful community support and use permitted local channels, because a united, law-abiding community carries weight.
4. **Formal challenges** — use consultation, the EIA/licence process, the complaint (khieu nai) and denunciation (tố cáo) routes, and — cautiously — the administrative courts.
5. **Media & communication** — raise the issue through permitted channels in ways that inform without inviting a political reaction.

No single step wins alone. The combination — lawful local support plus consultation, the EIA/disclosure and complaint routes — is what works within Vietnam's constraints.

A realistic picture of the odds. Be honest with your community from the start about what is likely — and, in Vietnam, about what is safe. Projects the state backs are almost always approved, and an outright public reversal is rare. The realistic, achievable wins are incremental and lawful: an EIA improved or sent back; consultation carried out properly where it was skipped; conditions and mitigation tightened; and — most commonly — **compensation and resettlement improved** through the complaint system. A project may also be quietly delayed, redesigned, or relocated after well-documented, lawful pressure. None of these is a dramatic public victory, but each is a genuine outcome that has protected real Vietnamese communities' land, water, and livelihoods. Just as important: a "win" in Vietnam also means having acted lawfully and kept your people safe. An effort that measures itself only against stopping the project outright will feel like failure even when it has won better compensation and a safer project; one that banks each lawful improvement, and keeps everyone safe, has genuinely succeeded. Plan for patience, lawfulness, and safety — not a dramatic confrontation.

Your lawful rights here are real. Within its constraints, Vietnamese law does give residents rights you can invoke: the 2020 Law on Environmental Protection **requires the project owner to consult the affected community** (Article 33) and requires the approved **EIA and licence to be publicly disclosed**; the Land Law gives rights around **compensation and resettlement**; and the Law on Complaints, the Law on Denunciations, and the Law on Access to Information give you formal, lawful ways to obtain documents, challenge a decision, and report wrongdoing. That framing matters practically: when an owner skips consultation, fails to disclose the EIA, or offers unlawful compensation, it is not merely being unfair — it is breaching duties you can lawfully raise through the complaint system. Approach the process as a resident asserting lawful rights — calmly, factually, and within the law — rather than as a supplicant, and while taking the safety cautions in Section 13 seriously.

Critical Caveat: A Tightly Constrained System

Vietnam's system prioritises state-directed development, runs consultation as a formality, lacks an independent judiciary, and closely restricts civil society — and has jailed environmental advocates. Assessing that honestly is essential, because it changes which tools are safe and useful. The strongest and safest routes are usually a rigorous, **technical** engagement with the **consultation** and the **disclosed EIA**, a specific, lawful **complaint** about a legal defect, and quiet work through **permitted local channels** — not protest, independent campaigning, or anything that can be framed as opposing the state. Section 13 deals honestly and at length with these constraints, and with how to stay safe.

How to use this guide

Read Sections 1–3 and, crucially, Section 13 before acting. Then work Section 4 (Target Identification) — it produces the facts every other step needs. Sections 5–8 run in parallel, always within lawful limits. Sections 9–11 are reference material. Section 12 pulls it onto one timeline; Section 13 is essential reading on constraints and safety.

HOW THE SYSTEM WORKS

Before you can act on a project you have to know who decides it, how, and the words the system uses. Vietnam is a **one-party socialist state** in which the Communist Party of Vietnam (CPV) directs the government at every level. Environmental assessment is governed chiefly by the **Law on Environmental Protection 2020 (Law 72/2020/QH14)**, in force since 1 January 2022, and its implementing decrees. Power over a project is shared between the **central government** (chiefly the **Ministry of Natural Resources and Environment, MONRE**, though its functions have been reorganised over time), the **provincial and district People's Committees (Ủy ban nhân dân)**, and the **communes**, all under Party direction, with the **Vietnam Fatherland Front** as the official channel for organised public participation.

The bodies that decide — and what each one controls

MONRE and the central ministries. The environment ministry sets policy and appraises and approves the EIA and environmental licence for the **largest and most sensitive projects** (for example those spanning two or more provinces, or of national importance). Sector ministries and the government handle investment approvals for major projects.

The provincial People's Committee (UBND tỉnh). After recent decentralisation, the **provincial People's Committee appraises and approves most EIAs and environmental licences** — most projects are now decided at this level. The provincial People's Committee also handles much land, investment, and permitting, and is the key local decision-maker and political actor.

The district and commune People's Committees. District committees handle some licences and local administration; the **commune People's Committee (UBND xã)** is the front line — it is usually where **community consultation** is organised and where residents first raise concerns. The commune and the local **Fatherland Front** are the permitted channels for community input.

The appraisal council (hội đồng thẩm định). The EIA is reviewed by an **appraisal council** of officials and experts convened by the approving authority, which examines the assessment method, the environmental baseline, the predicted impacts, and the adequacy of the mitigation, and recommends approval or rejection.

Which one is "yours"? Ask: which **group (I, II, III, or IV)** does the project fall in (this sets what assessment and licence it needs)? Does it need a full **EIA (ĐTM)** and an **environmental licence (giấy phép môi trường)**? Who **approves** them — **MONRE** (big or multi-province projects) or the **provincial People's Committee** (most projects)? Pinning this down is Step 1, and it decides the deadlines, the decision-maker, and which requirements apply.

How a decision is actually made — the journey of a project

For a project requiring an EIA, the path is roughly:

1. **Screening and preliminary assessment.** The project is classified into a **group (I–IV)** by its environmental impact. Larger projects must first do a **preliminary EIA (PEIA)** at the pre-feasibility stage, identifying the major environmental issues early.
2. **The EIA and community consultation.** The owner (or a qualified consultant it hires) prepares the **EIA (ĐTM)**, and — under **Article 33 of the 2020 Law** — must **consult** the affected community and individuals, and relevant agencies, typically **through the commune People's Committee and the Fatherland Front**, and reflect the results in the

report. **This is your main formal moment** to get concerns on the record — though the owner runs the consultation and is responsible for its contents, so document it carefully.

3. **Appraisal and approval.** The EIA is submitted to the approving authority (**MONRE** or the **provincial People's Committee**), reviewed by an **appraisal council**, and either approved, rejected, or sent back for revision, within a set period (for example up to **45 working days** for the largest projects). Common weaknesses are a poor environmental baseline, inadequate impact prediction, and weak mitigation.
4. **Public disclosure.** A key 2020-Law reform: the **approved EIA and the decision must be publicly disclosed** — the owner must publish the appraised EIA, and the authority must post the approval decision on its portal. This gives you documents you can use.
5. **Environmental licence and operation.** Before operating, the project needs an **environmental licence (giấy phép môi trường)**, issued by MONRE or a People's Committee, stating the permitted activities and environmental conditions (valid ~7–10 years), and the owner must then comply and report.

Beyond the EIA and licence, the project needs its investment approval, land allocation, and construction permits.

The rulebook — the policies that decide the outcome

- **The Law on Environmental Protection 2020 and its decrees.** Was the right assessment and licence required, the EIA properly done with genuine **Article 33 consultation**, and lawfully appraised and disclosed? The core battleground.
- **The Land Law.** Most conflicts also involve land recovery, allocation, and **compensation and resettlement** — a distinct, high-stakes area with its own rules and its own complaint routes.
- **Sector and investment law.** The investment approval, and sector rules (industry, energy, mining), add separate requirements.
- **The Law on Complaints and the Law on Denunciations.** These govern how you formally challenge an administrative decision or report wrongdoing (see Section 8).

Follow the money — why the system often leans toward "yes"

Understanding the pressures is targeting, not cynicism. Vietnam pursues rapid, state-directed, investment-led growth; provinces compete to attract industrial and infrastructure projects and the revenue and jobs they bring; many large developers are **state-owned enterprises or well-connected investors**; and land, once recovered by the state, is a major source of value. None of this is unusual for a developing economy, but it explains the strong default toward approval — and why the community's best levers are the technical, procedural, lawful ones (consultation, the disclosed EIA, a specific complaint) rather than any expectation that the process leans your way.

The overseers — who watches the decision-makers

- **The People's Courts (administrative division)** — hear administrative lawsuits against unlawful decisions; not independent of the Party-state, and used with caution, but a formal route.
- **The People's Procuracy (Viện kiểm sát)** — supervises legality and can be petitioned.
- **The Government Inspectorate and provincial inspectorates** — handle complaints and denunciations about administrative acts and corruption.
- **The National Assembly and People's Councils** — elected bodies (Party-guided) whose delegates can raise citizens' concerns.
- **The Vietnam Fatherland Front** — the official umbrella body through which permitted public participation and "supervision" are channelled.

Naming and using the right channel signals you are working lawfully within the system — which, in Vietnam, is both the safest and often the most effective approach.

A quick map of the words you will actually hear

The vocabulary is half the barrier, so here is the shorthand in plain terms. The **Law on Environmental Protection 2020** (Law 72/2020) is the framework. A project is sorted into a **group (I, II, III or IV)** by its impact, which sets what it needs. **ĐTM** is the full **EIA** (environmental impact assessment); a **PEIA** is the preliminary version done early for big projects; and a **giấy phép môi trường** is the **environmental licence** needed before operating. **MONRE** is the environment ministry, which approves the biggest projects; but after decentralisation the **provincial People's Committee (UBND tỉnh)** approves most, and the **commune People's Committee (UBND xã)** is the local front line where **consultation** happens. The **appraisal council (hội đồng thẩm định)** is the panel that reviews the EIA. **Article 33** is the provision requiring **community consultation**, and public **disclosure** of the EIA and licence is a key 2020 reform that hands you documents. The **Vietnam Fatherland Front** is the official umbrella body through which permitted public participation is channelled.

When you challenge a decision, **kiếu nại** is a **complaint** (asking the authority to review its own decision, within 90 days), **tố cáo** is a **denunciation** (reporting wrongdoing), and an **administrative lawsuit** in the **People's Court** is the last resort. Keep this list to hand — using the right term, through the right lawful channel, is both the safest and the most effective approach in Vietnam.

QUICK REFERENCE: SUCCESS RATES

These figures are **directional, not guarantees** — patterns across documented Vietnamese and comparable experience, not a controlled study, and they are lower and slower than in more open systems because the constraints are real. Use them to prioritise effort. The most important lesson for Vietnam sits inside the table: the **lawful, technical, within-system** levers — a rigorous engagement with **consultation** and the **disclosed EIA**, and a specific **complaint** about a legal defect — are both the safest and the most productive, while protest, independent campaigning, and litigation against the state carry real risk and lower odds. Above all, **weigh safety before any action**.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost (VND)	What "Success" Means
Documentation only	5-10%	2-4 months	0-20m	Project better understood; basis for other steps
Lawful local support only	15-25%	6-24 months	0-50m	Community united; local authority takes notice
Consultation engagement only	15-25%	1-3 months	0-20m	Concerns on record; can shape EIA/conditions
Complaint (kiếu nại) only	15-25%	3-12 months	0-20m	Decision reviewed, corrected, or conditions added
Administrative lawsuit only	10-20%	12-36 months	5m-200m	Decision annulled or sent back (rare, slow, sensitive)
Land/compensation complaint	20-35%	6-24 months	0-50m	Improved compensation/resettlement; delay
Media (permitted) only	10-15%	2-6 months	0-20m	Issue known; authorities respond quietly
Docs + local support	25-35%	9-24 months	5m-80m	Pressure plus improved conditions
Consultation + complaint	25-40%	6-18 months	0-50m	EIA improved/sent back; conditions tightened
Combined lawful steps	35-50%	12-36 months	10m-300m	EIA sent back, consultation forced, conditions/compensation improved, delay, or quiet redesign

Key insight: the combined lawful steps are several times more effective than any single one — and in Vietnam the mix that works leans on **lawful local support + consultation + the disclosed EIA + a specific complaint + (cautiously) the courts**, not protest or independent campaigning. The distinctive Vietnamese features are that the 2020 Law **requires community consultation and public disclosure** of the EIA and licence (giving you a legal hook and documents), and that the **complaint and denunciation** systems provide a formal, relatively low-risk way to raise defects — while the courts are a slow, sensitive, last resort.

A note on cost and risk: consultation, complaints, denunciations, and information requests are free or very low-cost. The main costs are any independent studies and, rarely, a lawyer for a lawsuit. But the real "cost" to weigh in Vietnam is risk: independent organising and anything that can be framed as political carries genuine danger, so the safest work is technical, lawful, and channelled through permitted bodies.

Effectiveness Visualization

SUCCESS PROBABILITY (EIA sent back, consultation forced, conditions or compensation improved, delay, or quiet redesign)

WITHIN-SYSTEM, LAWFUL APPROACH (technical engagement + complaint):

Combined lawful steps:	35–50%
Consultation + complaint:	25–40%
Land/compensation:	20–35%
Single lawful step:	5–25%

HIGH-RISK / LOW-RETURN (protest, independent campaigning vs the state):
(not recommended) low return, high personal risk

How to read this honestly. In Vietnam, the strongest and safest legal facts are **procedural and technical**: a **skipped or sham Article 33 consultation**, a **weak or non-disclosed EIA**, or — very often the real battleground — a **land-compensation and resettlement** grievance, all raised through the **complaint** system. The courts can, in principle, annul an unlawful decision, but administrative lawsuits against the state are slow, rarely succeed, and can be sensitive, so treat them as a considered last resort taken with legal advice. And anything that looks like organised political opposition carries real personal danger. But even a modest "win" — an EIA improved, consultation forced, compensation raised, a project delayed or quietly relocated — is a real outcome achieved within the system.

Step Importance Ranking (When All Combined)

1. **Lawful local support** — a united, law-abiding community, working through permitted channels, is the foundation and carries real weight with local authorities.
2. **Documentation** — the raw material for consultation, a complaint, and any lawsuit.
3. **Consultation and the disclosed EIA** — the legal hooks the 2020 Law gives you, and your best procedural grounds.
4. **The complaint (khuyến nại) system** — the formal, relatively low-risk route to raise a defect and get a decision reviewed.
5. **Media (permitted) and the courts** — used carefully; media through official/permitted outlets, the courts as a considered last resort.

Winning Vietnamese efforts combined a united, lawful community, a careful evidence file, rigorous engagement with consultation and the disclosed EIA, a specific complaint (often on land or a procedural defect), and quiet work through local channels — never reckless, always within the law.

What Vietnamese Experience Actually Shows

A few patterns recur. **The consultation and disclosure requirements are real hooks** — because the 2020 Law requires community consultation and public disclosure of the EIA and licence, a project that skips or fakes them has a genuine legal weakness you can raise. **Land and compensation are the most common battleground** — many conflicts are, at heart, about land recovery, compensation, and resettlement, and the complaint system on these issues is where communities most often win improvements. **The complaint system can work at the local level** — a well-documented, specific, lawful complaint to the right authority sometimes gets defects corrected, especially where the project's own paperwork is deficient. And — the sober, essential lesson — **independent environmental advocacy carries real danger**: prominent advocates have been imprisoned, so the effective path is technical, lawful, and channelled, not confrontational. The through-line is that Vietnam rewards communities that work rigorously and lawfully within the system, and punishes those who are seen to work against it.

STEP 1: TARGET IDENTIFICATION

You cannot act on what you have not precisely identified. Answer five questions, and keep the answers in a careful, private working document — this becomes the effort's factual spine. (Given the sensitivities, keep sensitive material secure.)

Core Questions You Must Answer

Question 1: What Exactly Will Be Affected?

Get the specifics, not impressions: exact location and footprint, project type and size, what is on the land now (homes, farmland, water, coast, forest), and what the project would do to it — including any **land recovery, compensation, and resettlement**. Obtain the **EIA (ĐTM)** — which the 2020 Law requires to be **publicly disclosed** — from the owner's site or the approving authority's portal. It is where the owner, on the record, describes the impacts and admits the residual ones. List every admitted impact with its page reference. Pay special attention to **water, health, farmland and**

livelihoods, and the **compensation** terms.

Question 2: Who Has Decision-Making Power?

Identify precisely: (a) which **group (I-IV)** the project is, and whether it needs a full **EIA** and **environmental licence**; (b) who **approves** them — **MONRE** (large/multi-province) or the **provincial People's Committee** (most projects); and (c) who runs the **consultation** (usually the commune People's Committee and Fatherland Front). Note the land and investment authorities too, since land is often the crux. Because Vietnam's live levers are consultation, the disclosed EIA, and the complaint system, know both the decision-makers and the requirements.

Question 3: What Specific Action Changes It?

A project can be improved, delayed, or stopped at several points: an EIA **sent back or rejected** by the appraisal council; **consultation** done properly where it was skipped; a **licence** delayed or conditioned; **compensation and resettlement** improved through the complaint system; a **local People's Committee** persuaded to revise approval; or, rarely, a decision **annulled** by a court. Map the points and aim at the lawful ones the system actually responds to — above all consultation, EIA, and land/compensation defects.

Question 4: When Is the Decision Final?

Diarise the deadlines: the **consultation** period; the **appraisal** window (e.g. up to 45 working days for the largest projects); and, decisively, the **complaint and lawsuit deadlines** — a complaint (khiếu nại) against an administrative decision must generally be filed within **90 days** of receiving or knowing of it, and an administrative lawsuit within **1 year**. Confirm the exact deadlines with a lawyer, because they are strict and short. Missing them can forfeit the route.

Question 5: Are There Documented Interests or Pressures?

Map, factually and very carefully: who profits, which companies (including **state-owned enterprises** and well-connected or foreign investors) are behind the project, whether land or approvals changed hands before the proposal, and whether the project has a "key/national" designation. Use public sources — the business registry (National Business Registration Portal), land and planning notices, and disclosed EIA/licence documents. Build a dated, sourced record — but keep it **private and factual**, and never publish accusations; in Vietnam that can be dangerous. Section 11 and Section 13 cover doing this safely.

Output of Step 1: a careful, private one-page fact sheet with the project's exact description, the group and approvals, who runs consultation, the land/compensation picture, the specific lawful lever to pursue, every deadline, and the interests involved.

Worked example: which lever is actually open

Suppose an industrial park is proposed on farmland near a village, requiring land recovery and discharging wastewater toward a river the village uses. Working the questions: **Q1** — the disclosed EIA admits wastewater impacts on the river, loss of farmland, and resettlement of some households; the compensation terms are set out in the land documents. **Q2** — as a sizeable industrial project it needs a full **EIA** and **environmental licence**, likely approved by the **provincial People's Committee**, with consultation run through the **commune**. **Q3** — the live, lawful levers are: rigorous engagement with the **consultation**; scrutiny of the **disclosed EIA** (is the wastewater treatment adequate? was consultation genuine?); and, above all, the **land-compensation** grievance through the **complaint** system, where communities most often win improvements. **Q4** — you diarise the consultation period and the **90-day** complaint clock. **Q5** — the business registry shows the (perhaps state-linked) developer. In an afternoon you know which levers are open — and that consultation, the EIA, and the land-compensation complaint, pursued lawfully, are your strongest and safest cards.

STEP 2: DOCUMENTATION

Documentation separates an effort the authorities take seriously from one dismissed as complaint. It is also what your consultation input, a complaint, and any lawsuit all live or die on — and in Vietnam, documenting **water and health impacts**, **land**, **farmland and compensation**, and the **adequacy of the consultation** is especially decisive. Build three layers. Keep sensitive material secure and share it only as needed; in Vietnam, careless handling can create risk.

The Three Documentation Layers

LAYER 1: BASELINE CONDITIONS DOCUMENTATION

Prove what exists **before** the project — you cannot show harm without a baseline, and once ground is broken the "before" is gone. Start the day you learn of the project.

Water and health. Document the current state of rivers, streams, groundwater, and coast — quality and use — and the human baseline (homes, the population, existing health, existing pollution), using official data and your own dated records. Water and health impacts are decisive in most Vietnamese conflicts.

Land, farmland, and livelihoods. Document the land as it is used now — farmland, homes, fishponds, gardens — and the livelihoods it supports, because **land recovery, compensation, and resettlement** are the crux of most conflicts, and the "before" picture is what a compensation grievance rests on. Keep your land-use papers, titles, and any prior agreements.

Community and environment. Document habitats, any protected or sensitive areas, and the community and its use of shared resources.

How to hold it. Keep everything dated, sourced, geo-referenced, and backed up securely in more than one safe place. A well-organised baseline is more useful than a merely large one — and for land-compensation cases, precise records of what each household holds and uses are the decisive material.

A note on doing your own measurements — carefully. You do not always need a lab. Dated, geolocated photographs of a river, your farmland, or a fishpond *before* the project are evidence, and simple, consistent records — a monthly photo from the same spot, a note of a stream's colour and smell, a log of the harvest or the fish catch — build a baseline no owner's snapshot can match. Water and health are decisive in most Vietnamese conflicts, so this ordinary record-keeping pays off. Where a specific figure will matter (contamination in water, pollution near homes), a modest sampling effort, ideally with quiet technical help, can produce numbers a complaint can rest on. Two cautions specific to Vietnam: keep this **lawful and low-profile** — routine, factual record-keeping of your own land and water is unremarkable, but anything that looks like an organised independent monitoring campaign can be sensitive — and **secure your records**, because for land-compensation cases especially, your own precise "before" documentation of what each household holds and uses is the single most valuable evidence you can have. Capture the ordinary "before" now, quietly and carefully, because once ground is broken it is gone, and its absence is the most common reason harm cannot later be proved.

LAYER 2: IMPACT ANALYSIS

Show what the project would do to that baseline. Your main text is the owner's **EIA (ĐTM)** — which the law requires to be **disclosed** — read it critically and catalogue four things:

1. **Admitted impacts** — every harm the EIA itself concedes, with page references. Unarguable.
2. **Weak baseline and mitigation** — scrutinise the environmental baseline, the impact prediction, and the **mitigation and treatment measures** (for example whether wastewater or emissions treatment is adequate); weak baseline data and inadequate mitigation are the defects the appraisal council is supposed to catch, and the ones you can raise.
3. **Underestimated or omitted impacts** — downplayed water, health, and land effects, and **cumulative impacts** with other projects in the area (a common gap, especially in industrial zones).
4. **Consultation adequacy** — whether the **Article 33 consultation** was genuinely carried out, properly documented, and reflected in the report. A skipped, token, or falsified consultation is a real legal defect, so document every flaw: who was (not) consulted, whether meetings happened, whether objections were recorded.

Get expert eyes on it where you safely can. A critique carries more weight when a qualified professional — a scientist, engineer, or physician — has reviewed it. Universities and technical experts can sometimes help quietly; but be mindful that in Vietnam, openly organised independent expertise can be sensitive, so prioritise lawful, low-profile channels. The goal is a written, technical impact critique that the appraisal authority and, if needed, a complaint can rest on.

LAYER 3: HEALTH & ECONOMIC IMPACT DOCUMENTATION

Translate environmental harm into human and economic terms, because that is what moves local authorities and grounds a compensation grievance. Document:

- **Health** — the specific risks (water contamination, air pollution, dust) to nearby residents, drawing on recognised standards.
- **Livelihoods and compensation** — the effect on farming, fishing, and other livelihoods, and — critically — whether the **compensation and resettlement** offered are fair and lawful. This is often the heart of the matter.

- **Community** — the loss of farmland, water, and a settled way of life, and the strain on the community.

Package this layer twice: a careful, factual version for the consultation, a complaint, and any court, and a simple version to explain the stakes to neighbours.

How to Structure Your Documentation

- **Phase 1: Baseline (Months 1-2)** — assemble the "before" record (water, health, land first) before ground is broken; secure your land papers.
- **Phase 2: Impact (Months 2-3)** — dissect the disclosed EIA and the consultation record; get technical review where you safely can.
- **Phase 3: Health/Economic/Compensation (Months 3-4)** — quantify the human, economic, and compensation stakes and package them.

Common Documentation Pitfalls (What Fails)

- **Missing the consultation period or the 90-day complaint deadline** — act on time with your best evidence.
- **Neglecting the land/compensation angle** — for most Vietnamese conflicts this is the winning issue; document holdings and compensation precisely.
- **Ignoring the consultation record** — a defective consultation is a real hook; document every flaw.
- **Only environmental data** — authorities respond to livelihood, compensation, and health arguments too. Breadth wins.
- **Ignoring the EIA's own admissions** — the disclosed EIA is a source of concessions. Quote it back, with page numbers.
- **Careless security** — protect sensitive material and, above all, people.

Documentation Budget Breakdown (VND)

Item	Low (volunteer/pro-bono)	Higher (commissioned)
Baseline data gathering	0-10m	15m-100m
Expert technical/health review	0 (quiet pro bono)	30m-200m
Independent sampling	3m-20m	20m-150m
Legal consultation	0 (where available)	10m-100m
Printing/local outreach	1m-10m	10m-50m

Most of this can be done for very little using the disclosed documents and public data. Spend where a technical report materially strengthens a complaint — usually on **water, health, or compensation**. One solid, factual report on the decisive issue is worth more than five general ones — and it must be lawful and low-profile.

WHAT TO GATHER, AND WHERE TO FIND IT

Most of what matters already exists in public or obtainable records. The job is knowing which record holds which fact, and pulling it before you need it. This section is the shopping list; it also points you to the sources this map links.

Start with the disclosed EIA and the approval portal. A key feature of the 2020 Law is that the **approved EIA and the approval decision must be publicly disclosed** — the owner must publish the appraised EIA, and the approving authority (MONRE or the provincial People's Committee) must post the decision on its portal. Check these; they are your primary documents and often reveal the project's weaknesses.

The consultation record. The **Article 33 consultation** documentation — who was consulted, how, and what they said — is what you scrutinise for a procedural defect.

Land and compensation documents. The land-recovery decision, the compensation and resettlement plan, and your own land papers — the crux of most conflicts. Local land and planning notices are usually posted at the commune.

A closer look at the land and compensation process — because it is usually the crux. In most Vietnamese development conflicts the deepest grievance is not the abstract environmental harm but the **recovery of land** and the **compensation and resettlement** that follow, so it is worth understanding the sequence. When the state recovers land

for a project, there is normally a **land-recovery decision**, a **compensation, support and resettlement plan**, and a **valuation** of what each affected household loses — its land, crops, structures, and, sometimes, its livelihood. Each of these is an **administrative decision you can complain about** if it does not follow the law or offers less than fair, lawful value: the valuation may be too low, the resettlement inadequate, the process skipped a step, or the plan may not match what the law requires. This is precisely why the **complaint (khiếu nại)** route is the most productive lawful lever for most communities — it targets a concrete, individual, legally-defined interest that the authorities are used to reviewing, rather than the harder task of challenging the project's existence. Gather, for each affected household, its **land-use certificate (sổ đỏ) or other papers**, a record of what is actually on and produced by the land, and the compensation figures offered — and check them against the published compensation framework for your province. Where the figures or the process fall short of the law, that is your strongest, safest, and most winnable ground.

Baseline data. Provincial environmental and water data, health-station records, and academic studies.

Ownership and interests. Company ownership from the **National Business Registration Portal**; investment approvals and planning notices.

How to obtain a document. Vietnam has **access-to-information** rules (the Law on Access to Information) and specific environmental-disclosure duties under the 2020 Law; you can request documents from the holding authority, and much should already be disclosed. Use the wording in Section 8E — kept simple and lawful.

Careful, lawful help. Some lawyers and legal-aid centres advise on land and administrative complaints; approach them discreetly. Be aware that **independent environmental NGOs operate under severe constraint** in Vietnam, and several advocates have been imprisoned — so prioritise lawful, local, low-profile channels and professional legal advice over anything that looks like organised independent campaigning.

Tie it to the map. The dots and layers here are your starting index — a mapped project points you to the deciding authority and the disclosed EIA, and the local-ally entries point you to lawful sources of help. Pull that thread first, then follow it into the disclosure portals, the land documents, and the requests above — always lawfully and carefully.

STEP 3: BUILDING LOCAL SUPPORT

Critical Insight About Organising (Lawfully)

In Vietnam, a united community that works **lawfully and through permitted channels** carries real weight with local authorities — but independent organising that can be framed as political opposition carries genuine danger. So the goal here is different from an open democracy: build broad, calm, law-abiding local support around **concrete, lawful concerns** (a river, farmland, compensation, health), work through the **commune People's Committee, the Fatherland Front, and other permitted bodies**, and avoid anything — slogans against the state, unauthorised gatherings, foreign-funded campaigning — that invites a political reaction. Villagers across Vietnam have, within these limits, pressed for better compensation, safer projects, and proper consultation.

Three principles carry special weight here: **lawfulness and calm** (frame everything as helping the project comply with the law and protect residents' lawful interests, not as opposing development or the state); **unity around concrete interests** (land, water, health, and compensation unite people and are legitimate matters to raise); and **safety first** (protect individuals, keep everything lawful and documented, and get legal advice — the risks here are real, and no project is worth a person's liberty).

PHASE 1: FOUNDATION (Months 1-2)

Step 1a: Start with the most affected, quietly. Reach the households whose land, water, health, or livelihood is most directly at stake. Listen first: concrete concerns (compensation, a polluted river, lost farmland) motivate and are lawful to raise. Keep early conversations low-key and factual.

Step 1b: Group by concrete concern. Let people come together around specific, lawful issues — compensation, water, health, farmland. These are legitimate matters the authorities are used to hearing.

Step 1c: Work through permitted structures. Rather than forming an independent campaign group (which can be sensitive), work through **existing, permitted channels**: the **commune People's Committee**, the **Fatherland Front** and its member organisations (farmers' association, women's union, etc.), the village head, and elected People's Council delegates. Choose a few respected, level-headed residents to represent the community lawfully. Keep decisions calm, collective, and documented. Where possible, get **legal advice** early on the land and complaint routes.

PHASE 2: PUBLIC ENGAGEMENT (Months 2-3)

Step 2a: Community meeting (lawful). Hold a meeting — ideally with or through the commune or Fatherland Front — to inform residents, agree the concrete concerns, and choose representatives; bring the disclosed EIA's admissions, the compensation terms, and the consultation deadline. Keep it about lawful local interests.

Step 2b: Clear materials. Simple, factual, sourced materials; lead with the water, health, farmland, and compensation stakes. Explain how residents can take part in the **Article 33 consultation** and submit their views. Avoid anything that reads as political.

Step 2c: Full participation in consultation. Turn people out for the **consultation** and get concerns recorded, and **document the process** (who was consulted, whether meetings happened, whether objections were noted) — because a defective consultation is a real, lawful ground. Many residents' recorded concerns carry weight.

Step 2d: Raise it through permitted channels. Ask your People's Council delegates and the Fatherland Front to relay the community's lawful concerns to the authorities.

PHASE 3: BROADENING SUPPORT (Months 3-6)

Step 3a: Careful outreach. Bring in lawful, credible support — sympathetic technical experts (quietly), lawyers or legal-aid centres for the land and complaint issues, and, where appropriate, official mass organisations. Each adds credibility and capacity. Be cautious with anything that could be portrayed as outside or foreign-directed.

Step 3b: Clear roles. Agree who represents the community, who handles the complaint, who keeps the documents, and who liaises with the authorities and any lawyer — and keep it calm and lawful. Clarity prevents both confusion and exposure.

Step 3c: Coordinated lawful work. Joint consultation input, a shared complaint (on land/compensation or a procedural defect), shared documents and legal advice, and a coordinated, respectful approach to the commune, district, and provincial authorities.

PHASE 4: SUSTAINED, LAWFUL PRESSURE (Months 6-12)

Step 4a: Use the complaint and petition channels. Pursue the **complaint (khiếu nại)** and, where appropriate, **denunciation (tố cáo)** routes and petitions to the People's Committee, the inspectorate, and the People's Council — the formal, lawful ways to press for review and correction.

Step 4b: Careful communication. Where possible, work with **official or permitted media** to inform the public factually (Section 10) — Vietnamese state and local media do sometimes report pollution and land grievances. Keep it factual and non-political.

Step 4c: Prevent failure points — and protect people. Efforts fail when they miss the consultation period or the 90-day complaint deadline, rely on emotion over documented fact, or — most seriously — stray into territory that draws a political reaction and endangers people. Diarise every deadline, build the factual file, keep everything lawful and calm, and protect individuals above all.

Worked example: a lawful effort that works within the system

A village faces an industrial park that will take farmland and discharge toward its river. Anger is high; some talk of a protest. What is both safest and most effective happens differently. First, the community works **through the commune and the Fatherland Front's farmers' association**, raising concrete, lawful concerns — fair **compensation**, safe **wastewater treatment**, and proper **consultation** — rather than opposing the project as such. Second, it turns people out for the **Article 33 consultation** and **documents its flaws** (households not consulted, objections not recorded), creating a lawful procedural ground. Third, it gets **legal advice** and prepares a **complaint (khiếu nại)** on the compensation terms and the consultation defect — the routes where communities most often win improvements. Fourth, it asks its **People's Council delegate** to relay concerns and, where possible, works with **local media** on the factual pollution risk. No protest, nothing political — but real, lawful pressure that can improve compensation, tighten the project, and force proper consultation. The lesson generalises: **in Vietnam, working through permitted channels on concrete lawful concerns, documenting the consultation, and using the complaint system is what achieves results while keeping people safe.**

Support-Building Budget: Year-Long Effort (VND)

Very low. A lawful, community-run effort operates on **little more than the cost of meetings, materials, travel, and copying** — a few million to a few tens of millions of đồng, mostly volunteer. The main potential cost is **legal advice** for a land or complaint case (and, rarely, an independent study). Communities typically fund this through **modest local contributions**. Keep simple, transparent accounts, and — crucially — avoid outside funding arrangements that could be portrayed as foreign-directed campaigning, which in Vietnam carries real risk.

STEP 4: FORMAL CHALLENGES

Vietnam gives communities a narrow but real set of lawful tools — consultation, the EIA/disclosure requirements, the complaint (khấu nại) and denunciation (tổ cáo) systems, and, as a last resort, the administrative courts. Choosing the right one — and using it lawfully — is essential. Three tracks — consultation and the EIA, the complaint system, and (cautiously) the courts. Throughout, get legal advice where you can, and keep everything within the law.

TRACK 1: CONSULTATION AND THE EIA (the front door)

- **Article 33 consultation.** Take part, and get concerns on the record, in the **community consultation** the owner must carry out. It can shape the EIA and its conditions, and — because it is a legal requirement — a **skipped, token, or falsified consultation is a genuine defect** you can later raise. Document the process meticulously.
- **Input to the appraisal.** Submit factual, technical concerns (weak baseline, inadequate treatment/mitigation, omitted impacts) to the approving authority and, where possible, to the **appraisal council**, on the very grounds it is meant to check.
- **Use the disclosure.** Because the EIA and the approval must be **publicly disclosed**, obtain them and use their own admissions and gaps as the basis of your case.

TRACK 2: THE COMPLAINT AND DENUNCIATION SYSTEM (the main lawful lever)

- **Complaint (khấu nại).** The core formal route: a citizen or organisation whose lawful rights are affected can **complain about an administrative decision or act** (for example an approval, a licence, or — very commonly — a **land-recovery or compensation decision**) to the authority that issued it; if unsatisfied, complain to the **next higher authority**; and, ultimately, bring an administrative lawsuit. File within **90 days**. This is often the most productive lawful lever, especially on **land and compensation**.
- **Denunciation (tổ cáo).** A separate route to **report unlawful conduct** by an agency or official (for example a legal violation in the approval) to the competent body or inspectorate, which must investigate. Use it for genuine wrongdoing, factually and carefully.
- **Petitions to oversight bodies.** Petition the **inspectorate**, the **People's Council**, and your **National Assembly / People's Council delegates**, who can raise the matter.

TRACK 3: THE ADMINISTRATIVE COURTS (a considered last resort)

- **Administrative lawsuit.** After (or instead of) the complaint route, you can sue to **annul an unlawful administrative decision** (the approval, the licence, or the land/compensation decision) in the administrative division of the **People's Court**, generally within **1 year**. Be realistic: the courts are **not independent of the Party-state**, administrative suits against the state succeed rarely and slowly, and litigation can be sensitive — so take this step only with legal advice, on a clean legal defect, and with eyes open.
- **Civil claims for damage.** Where pollution has caused harm, a civil compensation claim may be possible, again with legal advice.

The three challenge types

TYPE 1: CONSULTATION + EIA (the front door)

Engage with the consultation and the disclosed EIA, aiming at the technical and procedural grounds. Free, lawful, and the source of your best procedural hooks.

TYPE 2: THE COMPLAINT SYSTEM (the main lawful lever)

The khiếu nại and tố cáo routes — the formal, relatively low-risk way to get a decision (especially on land/compensation)

reviewed and corrected.

TYPE 3: THE COURTS (a considered last resort)

The administrative lawsuit — a slow, sensitive, rarely-successful route against the state, used only with legal advice on a clean ground.

Legal Strategy Decision Tree

1. **Is consultation happening?** → Take part and **document every flaw** now — it is a lawful ground.
2. **Is land/compensation the issue?** → Prepare a **complaint (khieu nại)** on the compensation/resettlement decision — often the most winnable lever.
3. **Is there a clear legal violation?** → Consider a **denunciation (tố cáo)** or a complaint about the decision, within **90 days**.
4. **Is the complaint route exhausted and the ground clean?** → Consider, **with legal advice**, an administrative lawsuit within **1 year** — as a last resort.

Success Factors

The right ground (a defective consultation; a weak/non-disclosed EIA; above all an unlawful or unfair **land/compensation** decision); a careful, documented file; a **timely, lawful complaint** (90 days) to the correct authority; and legal advice. Missing any one weakens the effort — and, throughout, keeping everything lawful and safe.

What to Avoid

Missing the consultation period or the 90-day complaint deadline; relying on emotion rather than a documented defect; escalating to court without legal advice on a clean ground; and — most importantly — anything that can be treated as organised political opposition, which carries real personal danger and rarely helps the project fight.

TURNING YOUR EVIDENCE INTO ARGUMENTS

Evidence only counts when it is aimed at a specific, lawful ground. Here is how the records you gathered map onto the arguments that most often work in Vietnam — so you raise the right fact through the right channel.

An unlawful or unfair land/compensation decision → complaint (the most winnable ground). Feed it with: your land papers, the compensation and resettlement plan, and the specific ways it departs from the law or from fair value.

A skipped or defective Article 33 consultation → procedural ground. Feed it with: your documented record of who was (not) consulted and whose objections were ignored.

A weak or non-disclosed EIA → appraisal/complaint ground. Feed it with: the EIA's gaps (baseline, mitigation) and any failure to disclose it as the law requires.

Inadequate pollution treatment → conditions / complaint ground. Feed it with: the technical inadequacy of the wastewater or emissions treatment, expert-reviewed where possible.

Ignored cumulative impacts → appraisal ground. Feed it with: the other projects in the area and the EIA's silence on their combined effect.

A genuine legal violation by an agency/official → denunciation. Feed it with: the specific unlawful act, documented from records.

The pattern: match one clean, documented fact to one lawful ground, **lead with the land/compensation complaint** (Vietnam's most winnable lever) and the **consultation and EIA** grounds, raise them through **consultation and the complaint system**, and reserve the **courts** for a clean case with legal advice. A lawyer or legal-aid centre can tell you which ground is live — approach them discreetly.

STEP 5: MEDIA & COMMUNICATION

In Vietnam, media is a double-edged tool: **permitted, factual coverage** (often of pollution or land grievances) can move authorities to act quietly, but anything that reads as political campaigning, or that involves foreign or "reactionary" outlets, carries real danger. So the goal is to inform lawfully and factually — not to campaign against the state.

How This Works

State and local media in Vietnam do sometimes report **pollution incidents, land grievances, and compensation disputes** — these are treated as livelihood and administrative issues, not political ones. A factual, well-documented story about a river at risk or unfair compensation, offered to a **permitted outlet**, can prompt authorities to respond. The safest coverage frames the issue as protecting residents' lawful interests and helping the project comply with the law.

What Makes a Safe, Effective Story

Local stakes + a concrete, lawful concern (pollution, water, compensation) + the project's own documents + a human face = coverage that helps. Keep it factual, non-political, and sourced. Never frame it as opposition to the government or development as such.

Which Outlets

Work with **official and permitted Vietnamese outlets** and their environment or society desks, which do cover pollution and land issues. **Avoid foreign, exile, or "reactionary" outlets**, and avoid framing that could be portrayed as anti-state — association with these can turn a livelihood issue into a security matter and endanger people.

Building Trust Carefully

Give reporters accurate, sourced material and be a reliable, factual contact. One trusted relationship with a mainstream Vietnamese journalist who covers environment or land can help. Offer access to the site and to affected residents — with their consent and safety in mind.

Why careful communication matters

Even quiet, factual coverage can reach an official who orders a review, a technical expert, or a lawyer — and it creates a lawful public record. But in Vietnam, the calculus is different: the wrong kind of publicity can endanger people. So communicate to inform lawfully, keep it factual and non-political, and always weigh safety first.

What to Avoid

Anything that frames the issue as political opposition; contact with outlets the state deems hostile; foreign-funded or foreign-directed campaigning; and publishing accusations you cannot prove — all of which carry real risk in Vietnam.

LETTERS & SUBMISSIONS

Ready-to-adapt templates. Keep them factual, dated, sourced, and — importantly — **lawful and non-political**. Submit important ones through the authority's official reception (bộ phận tiếp nhận) and keep dated proof (biên nhận) of anything you file — Vietnamese deadlines (the 90-day complaint clock) are strict. Have a lawyer review anything heading toward a complaint or court, and never include accusations you cannot prove.

8A. Note to a permitted local journalist (factual)

Subject: [Commune/District]: residents' concerns about [project] — documents attached

Kính gửi [name],

A [project type] is proposed at [location]. Its own disclosed environmental report (ĐTM) admits [specific admitted impact, quoted, with page number], including impacts on [the river/farmland/health] that our community depends on, and questions remain about [compensation / wastewater treatment]. Residents wish to ensure the project complies fully with the law and protects our lawful interests.

I can share the documents and connect you with affected residents. Might you look into it?

8B. Letter to a decision-maker (People's Committee / approving authority)

Subject: Concerns regarding [project] — [reference number]

Kính gửi [the Chairman of the [Provincial/District] People's Committee / the approving authority]:

We, residents of [village/commune] affected by [project] at [location], respectfully raise the following lawful concerns and request that they be addressed:

1. [Concern 1 — e.g. the compensation and resettlement for recovered farmland do not appear consistent with [law/fair value].]
2. [Concern 2 — e.g. the community consultation required by Article 33 was not properly carried out.]
3. [Concern 3 — e.g. the EIA's wastewater treatment appears inadequate to protect our river.]

We wish only for the project to comply fully with the law and for our lawful interests to be protected. We request a written response and are ready to provide our evidence.

[Signatories, village/commune, contact]

8C. Consultation submission (Article 33)

Community consultation input on the ĐTM for [project], reference [number]

The affected residents of [village/commune] submit the following in the community consultation: 1. **Water/health.** [Impacts on our river/groundwater/health are underestimated; the treatment measures appear inadequate.] 2.

Land/livelihoods. [Loss of farmland and its effect on livelihoods; compensation concerns.] 3. **Consultation.** [We note that [households were not consulted / this meeting is the first notice]; we ask that consultation be carried out fully as the law requires.] 4. **Cumulative impact.** [This project, with others nearby, should be assessed together.]

We ask that these concerns be reflected in the report and that the project's conditions protect residents' lawful interests.

[Date, village/commune, contact; attach evidence]

8D. Request for legal advice (to a lawyer / legal-aid centre)

Subject: Request for advice on [land/compensation / administrative complaint] regarding [project]

Kính gửi [lawyer / legal-aid centre],

Residents of [village/commune] are affected by [project], which involves [land recovery and compensation / an environmental approval] we believe may not comply with the law. We would value your advice on our lawful options — the complaint (khiếu nại) route, the deadlines, and whether we have a case — and, if appropriate, your representation. We can provide our land papers and the disclosed project documents.

[Name, village/commune, contact]

8E. Request for information / documents

Subject: Request for project documents

Kính gửi [the approving authority / People's Committee]:

Under the environmental-disclosure requirements of the Law on Environmental Protection 2020 and the Law on Access to Information, we request: 1. the approved EIA (ĐTM) and the approval decision for [project]; 2. the community-consultation record; 3. the land-recovery, compensation, and resettlement decisions affecting [village/commune].

Please provide these as the law requires. [Name/village, date, contact]

8F. Complaint (khiếu nại) — through counsel where possible

COMPLAINT (Đơn khiếu nại)

Complainant: [name/representative, village/commune]. **Decision complained of:** [the compensation decision / approval / licence no. and date].

We complain about the above administrative decision on the grounds that [it does not comply with [law] / the compensation is not consistent with fair value and the law / the required consultation was not carried out]. We request that the decision be **reviewed and corrected**. We attach [land papers, the decision, and our evidence]. We file within the 90-day period.

[Signature, date, contact]

8G. Factual public information note (for permitted use)

[Village/commune] residents' information note — [date]

Residents of [village/commune] have raised lawful concerns about [project] at [location], including [top two concerns — e.g. compensation and river pollution]. The project's own disclosed report admits [quoted impact]. Residents ask that the project comply fully with the law and protect their lawful interests, and have submitted their concerns to [authority]. Contact: [name, phone].

8H. Petition to an oversight body / delegate

Subject: Petition regarding [project] — request to relay residents' concerns

Kính gửi [the People's Council delegate / the inspectorate / the Fatherland Front committee]:

We, residents of [village/commune], respectfully ask you to relay and help address our lawful concerns about [project]: [compensation / consultation / pollution]. We attach our evidence and ask for your assistance within your role in supervising administration.

[Village/commune, date, contact]

Important Caveat

Templates are starting points. Adapt every one to your real facts, cite the actual reference and dates, keep everything **factual, lawful, and non-political**, and — for a complaint or court step — have a lawyer review it. Deadlines are strict (the consultation period; the **90-day** complaint clock; the **1-year** lawsuit clock). Keep dated proof of everything you file. Above all, **never publish accusations you cannot prove, and avoid anything that could be treated as political** — in Vietnam, that can endanger people. When in doubt, get legal advice and choose the safer course.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can build support or sustain an effort. If you have limited time, you can still act lawfully and usefully — while keeping yourself safe. In rough order of impact for the effort:

1. **Get the disclosed EIA and the compensation documents.** The 2020 Law requires the EIA and approval to be published; obtain them from the owner's site or the authority's portal, and read the compensation and resettlement terms. These are your key documents.
2. **Take part in the Article 33 consultation and document it.** Attend, submit your concerns in writing, and record any flaws (who was not consulted, objections not noted) — a defective consultation is a lawful ground.
3. **Prepare a complaint (khẩn nại) on land/compensation within 90 days.** For most residents this is the most winnable lawful lever; keep the deadline and get legal advice if you can.
4. **Quote the EIA's worst admission back to the authority** (Section 8B). The project's own words carry weight.
5. **Raise it through permitted channels** — your commune, Fatherland Front, and People's Council delegate (Section 8H) — the lawful way to press for review.
6. **Request any missing documents** (Section 8E), including the consultation record.
7. **Get legal advice discreetly.** Even a short consultation tells you your best ground and the deadlines — and helps you stay safe and lawful.

If you do only the first three, you have your documents, your concerns on the record, and a lawful complaint prepared on the issue you are most likely to win. That is a real contribution. Throughout, keep everything lawful and non-political, and prioritise your safety above all.

WHEN THE SYSTEM IS TILTED — AND HOW TO STAY SAFE

This section is essential reading for Vietnam. The system is not merely tilted toward development — it operates in a **one-party state with tightly restricted civic space**, no independent judiciary, and a documented record of **imprisoning environmental advocates**. Being honest about this is how you choose tools that are both effective and safe.

What This Reality DOES (and DOESN'T DO)

The reality prioritises state-directed investment, runs consultation as a formality, controls the courts and media, and treats independent or foreign-linked campaigning as a security concern. It does **not** eliminate every lawful lever: the 2020 Law **requires consultation and disclosure**; the **complaint (khieu nại)** and **denunciation (tố cáo)** systems are real, especially on **land and compensation**; the courts exist as a last resort; and permitted media do cover pollution and land grievances. The key is to use these **lawful, technical, within-system** levers, work through **permitted channels**, and avoid anything that can be framed as political — while protecting people.

Reading Your Situation

- **A concrete, lawful grievance (compensation, pollution, a procedural defect).** These are legitimate matters to raise through consultation, the complaint system, and permitted media, and are where communities most often win improvements. This is the safe, productive zone.
- **A project the state strongly backs.** Expect approval and limited room; concentrate on lawful improvements — compensation, mitigation, proper consultation — rather than stopping it outright, and accept that delay and improvement may be the realistic wins.
- **The danger zone.** Anything resembling organised political opposition, unauthorised protest, foreign-funded or foreign-directed campaigning, or public accusation against the state — this carries **real personal danger** and rarely helps the project fight. Stay out of it.

Documented Dynamics — Read This Honestly

The record is sobering. Vietnam's civic space is rated "**closed**", and since 2021 the government has **imprisoned a series of prominent environmental advocates and NGO leaders**, in several cases on charges (such as tax matters) that human-rights organisations regard as pretextual, even as the country pledged to involve civil society in its energy transition. Independent environmental NGOs have been pressured or forced to close. This is the essential context: the effective, safe path in Vietnam is **lawful, technical, local, and channelled through permitted bodies** — not confrontation, and not association with anything the state may deem hostile. No project fight is worth a person's liberty.

Assessment Framework — Determine Your Situation

Ask: Is this a concrete, lawful grievance (compensation, pollution, a procedural defect) I can raise safely? Is the land/compensation issue the crux (often the most winnable)? Was consultation defective? Can I get legal advice? Is there any risk this could be framed as political (if so, step back and get advice)? The answers tell you whether to proceed with the consultation and complaint routes — and, above all, how to stay safe.

Direct Action: A Clear Caution (Descriptive, Not Prescriptive)

Unlike in open democracies, **unauthorised protest and independent campaigning carry serious risk** in Vietnam, and this guide does **not** recommend them. Public gatherings are tightly controlled; framing an issue as opposition to the state can turn a livelihood matter into a security case. The lawful tradition here is to raise **concrete grievances through petitions, complaints, and permitted channels**. Keep strictly within the law, avoid anything political, and get legal advice before any collective action. The movement's — and each person's — safety is paramount.

Honest Assessment

Within these tight constraints, lawful effort still achieves real things — improved compensation, safer projects, proper consultation, delay, and sometimes quiet relocation — and these are genuine wins. But the constraints and dangers are real, some fights cannot be won safely, and no outcome is worth endangering a person. Concentrate on the lawful, technical, local levers; work through permitted channels; get legal advice; and put safety first, always.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Most bad decisions are lawful decisions, or decisions you disagree with, not provable corruption. Corruption exists in Vietnam — the state itself runs periodic anti-corruption drives — but for a community the safest and most useful lens is **structural**: who benefits, and through which channel, so you can target the lawful lever. Handle any suspicion of corruption with great care: **public accusation is dangerous** in Vietnam and can rebound on you.

The provincial People's Committee and local officials. The main pressure point: provinces and localities compete for investment, and officials may favour a project for revenue, targets, or personal interest. Signs: a rushed approval, a compensation scheme that undervalues land, an official tied to the developer. Lever: the lawful **complaint** and, for genuine wrongdoing, **denunciation** and the **inspectorate** — not public accusation.

State-owned and connected developers. Many big projects are **state-owned enterprises or well-connected investors**, so promoter and state can be entwined. Signs: land or approvals moving smoothly for a favoured investor, weak scrutiny. Lever: the disclosed EIA and the land/compensation complaint, kept strictly factual.

The appraisal and licensing bodies. Where approval is rushed or a weak EIA is waved through, the technical process may be under pressure. Lever: the EIA's own defects and the consultation record, raised through the appraisal and complaint routes.

The land system. Land is the crux of most corruption concerns — recovery at low compensation and reallocation at high value. Signs: undervaluation, opaque reallocation. Lever: the land/compensation **complaint**, with legal advice — the most winnable and legitimate route.

The oversight bodies. Complaints and denunciations run to the **inspectorate** and the **procuracy**; the Party's own anti-corruption apparatus sometimes acts on serious cases. These are the lawful channels for genuine wrongdoing.

How to act on it, safely. Document from records, never rumour, and keep it private. Route any genuine concern through the **lawful channels** — the complaint and denunciation systems, the inspectorate, the procuracy — and **through a lawyer** where possible. Do **not** make public accusations, contact hostile outlets, or frame the matter politically: in Vietnam this is dangerous and can turn an administrative grievance into a security case against you. Keep to the provable, lawful, factual ground — usually the land/compensation and procedural issues — and protect your people.

INTEGRATION & TIMELINE

The five steps run in parallel and reinforce each other over an effort that typically spans a year or more (and a complaint or lawsuit can run longer). Here is how they fit onto one timeline — built around Vietnam's deadlines and, throughout, around lawfulness and safety.

Realistic 12-Month Timeline

Months 1-2 (Foundation). - Identify the target precisely (Step 1) and write the careful, private one-page fact sheet — project, group, approvals, who runs consultation, the land/compensation picture, the lawful lever to pursue, every deadline. - Work quietly through the community's most affected households and permitted local structures (commune, Fatherland Front). - Begin baseline documentation (Step 2, Layer 1), water, health, and land first; secure your land papers. - Obtain the **disclosed EIA** and the land/compensation documents. - Get **legal advice** on the land and complaint routes, discreetly.

Months 2-3 (Engagement). - Take part fully in the **Article 33 consultation** and **document every flaw** (Step 4, Track 1). - Raise concerns through the commune, Fatherland Front, and your People's Council delegate. - Hold a lawful community meeting and, where safe, engage permitted media (Steps 3 & 5). - Complete the EIA critique and the compensation analysis (Step 2, Layers 2-3).

Months 3-6 (Broadening). - Broaden lawful support carefully; line up technical and legal help (Step 3, Phase 3). - Prepare the **complaint (kiếu nại)** — usually on land/compensation or a procedural defect (Step 4, Track 2) — within the **90-day** window. - Sustain lawful, factual pressure through permitted channels.

Months 6-12 (Lawful pressure & decision). - Pursue the **complaint** and, where warranted, **denunciation** and petitions to the inspectorate and People's Council (Step 3, Phase 4). - If a decision is unlawful and the ground is clean, consider — **with legal advice** — an administrative lawsuit within the **1-year** window (Track 3), as a last resort. - Keep everything lawful, factual, and safe throughout.

Beyond 12 months. - A complaint or lawsuit can run for a year or more; pursue improvements to compensation, mitigation, and conditions in parallel. - If the project proceeds, monitor compliance and pursue further lawful complaints for any breach. - Keep the community's factual file and lawful unity intact — and keep protecting people.

Warning Signs — Act Early

The EIA consultation or land-recovery notice appears (act now); the disclosed EIA is published; a compensation plan is issued; a "key project" designation is used. Early, lawful action — taking part in consultation, documenting it, and preparing a complaint — is far stronger than reacting late, because the consultation period and the 90-day complaint clock are short.

Key Principles (What Separates Effective Efforts from Failed Ones)

Effective efforts: identify the lawful lever (usually land/compensation, the consultation, and the disclosed EIA); work through permitted channels and keep the community united and calm; document rigorously, land and water first; use the consultation and the complaint system; get legal advice; hit every deadline; and — above all — keep everything lawful and safe. Failed or dangerous efforts: miss the consultation period or the 90-day deadline; rely on emotion; escalate to court without a clean ground; or stray into political territory that endangers people.

FINAL ASSESSMENT

Real Outcomes: What Winning Looks Like

"Winning" in Vietnam takes forms suited to its constraints, and it is worth naming them so you recognise a win when you get one: - an EIA **sent back or improved**, or consultation **carried out properly** where it was skipped; - **compensation and resettlement improved** through the complaint system — often the most achievable win; - the project's **conditions and mitigation tightened** (for example better wastewater or emissions treatment); - a **licence delayed** or a local authority persuaded to revise approval; - a project **quietly redesigned or relocated** after lawful, documented pressure; - rarely, a decision **annulled** by a court; - and, throughout, a community that has acted lawfully and kept its people safe.

Vietnamese communities have achieved these — through lawful, technical, within-system effort, not through confrontation.

Decision Point: Continue, Modify, or Reassess

Reassess honestly at each milestone — and weigh **safety** at every one. If the land/compensation ground is strong, or a consultation or EIA defect is clear, the complaint route may be well worth it. If the deadlines have passed, effort shifts to monitoring, further lawful complaints, and local channels. If continuing would require stepping into political or unsafe territory, **stop** — no project is worth a person's liberty. Continuing lawfully is often right; escalating unsafely never is.

The Bottom Line

Vietnam's system prioritises state-directed development, runs consultation as a formality, controls the courts and media, tightly restricts civil society, and has imprisoned environmental advocates — so opposition here must be, above all, **lawful, technical, and safe**. But the system does provide real levers: the 2020 Law **requires community consultation and public disclosure** of the EIA and licence, giving you legal hooks and documents; the **complaint (kiếu nại) and denunciation (tố cáo)** systems offer a formal, relatively low-risk way to raise defects — above all on **land and compensation**, the most winnable ground; permitted media do cover pollution and land grievances; and the courts exist as a last resort. Communities that work through permitted channels on concrete lawful concerns, document to the land, water, and consultation standards, engage the consultation and the disclosed EIA, use the complaint system with legal

advice rather than confrontation, keep everything lawful and non-political, and put safety first have improved compensation, tightened projects, forced consultation, delayed and relocated developments, and protected their people — and can again. No single step wins; the combination does, within the law. Start today by obtaining the disclosed EIA and land documents, taking part in consultation, getting legal advice, and identifying which lawful lever is open — and, throughout, keep your people safe.